



CHAPTER xxxiii

An Act to authorise the mayor aldermen and burgesses of the borough of Newport to construct additional waterworks to make further provision with respect to their water undertaking and for other purposes.

[14th July 1953.]

WHEREAS the county borough of Newport is a municipal borough under the management and local government of the mayor aldermen and burgesses of the borough (in this Act respectively referred to as "the borough" and "the Corporation"):

And whereas by the Newport (Monmouthshire) Corporation Water Act 1888 the undertaking and powers of the Newport Waterworks Company were transferred to the Corporation and the Corporation were authorised to construct additional waterworks and by divers subsequent Acts further powers with reference to their water undertaking were conferred upon the Corporation:

And whereas it is expedient to empower the Corporation to construct the waterworks and other works referred to in this Act and to make further provision as in this Act contained in regard to their water undertaking:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows:—

£

The construction of the works authorised by this					
Act (except filter house extension and filters)					
Filter house extension	...	...	...	...	18,450
Filters	...	...	...	...	13,000
	...	...	...	...	31,300

And whereas the works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas a plan and sections showing the lines and levels of the works authorised by this Act and a plan of the lands which may be taken compulsorily or in which easements may be acquired compulsorily under the powers of this Act and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands respectively have been deposited with the clerk of the county council of the administrative county of Brecknock and are in this Act respectively referred to as the deposited plan the deposited sections and the deposited book of reference:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

PART I

PRELIMINARY

Short title. 1. This Act may be cited as the Newport Corporation Act 1953.

Division of
Act into Parts. 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Works.
Part III.—Lands.
Part IV.—Finance and miscellaneous.

Incorporation
of Acts. 3. The following Acts and parts of Acts (so far as the same are applicable for the purposes of and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act namely:—

(1) The Lands Clauses Acts with the following exceptions and modification:—

(a) section 92 (Parties not to be required to sell part of a house &c.) and sections 127 to 132 (relating to the sale of superfluous lands) of the Lands Clauses Consolidation Act 1845 are not incorporated with this Act;

(b) the bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section:

(2) The following provisions of the Third Schedule to the Water Act 1945:—

Part I (Interpretation);

Part II (Works and lands) except sections 5 7 and 9;

In Part VI (Breaking open streets &c.) sections 22 27 and 28;

In Part XVI (General and miscellaneous) sections 85 91 92 93 and 94:

Provided that for the purposes of the application of such provisions section 2 of the said schedule shall be read and have effect as if the expression “the deposited plan” was substituted for the expression therein “the plans submitted to the Minister” and the expression “the deposited sections” was substituted therein for the expression “the said plans” wherever the last-mentioned expression occurs:

(3) The provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and in such provisions for the purposes of this Act “the company” means the Corporation “the railway” means the waterworks authorised by this Act and “the centre of the railway” means the centre of such waterworks respectively.

4.—(1) In this Act unless the subject or context otherwise Interpretation. requires—

“the Act of 1920” means the Newport Corporation Act 1920;

“the borough” means the county borough of Newport;

“the Corporation” means the mayor aldermen and burgesses of the borough;

“the Lands Clauses Acts” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 by the Lands Tribunal Act 1949 and by this Act;

“the tribunal” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance

of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended or varied by or by virtue of any subsequent enactment including this Act.

PART II

WORKS

Power to
make works.

5. The Corporation may make and maintain in the lines and situations and in or under the lands delineated on the deposited plan and described in the deposited book of reference and according to the levels shown on the deposited sections the following works in the rural district of Brecknock in the county of Brecknock:—

In the parish of Llanfigan—

Work No. 1—A weir and intake across the Clydach stream at a point one thousand four hundred and fifty yards or thereabouts above the junction thereof with the Caerfanell stream ;

Work No. 2—An aqueduct (consisting of a conduit or line or lines of pipes) commencing at Work No. 1 and terminating in the existing Talybont Reservoir of the Corporation at a point two hundred yards or thereabouts in a south-westerly direction from the westerly extremity of the dam thereof ;

In the parish of Llanfigan and the parish of Llanddetty—

Work No. 3—A weir across the Caerfanell stream at a point sixty-seven yards or thereabouts below the confluence therewith of the Clydach stream.

Works to form
part of water
undertaking.

6. The works authorised by this Act shall for all purposes be deemed part of the water undertaking of the Corporation.

Period for
completion
of works.

7. If the works authorised by the last but one preceding section of this Act are not completed on or before the thirty-first day of December nineteen hundred and fifty-eight then as from that date the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to such of them or so much thereof respectively as shall then be completed :

Provided that the Corporation may extend enlarge alter reconstruct renew or remove any of the works authorised by that section and in the case of the aqueduct so authorised may lay down additional lines of pipes as and when occasion may require.

8. Subject to the provisions of this Act the Corporation may Power to after the completion of the weir (Work No. 3) authorised by take waters. this Act collect impound take use divert and appropriate for the purposes of their water undertaking the waters of the Clydach stream and all such springs streams and waters as will or may be taken or intercepted by means of the weir and intake (Work No. 1) and the aqueduct (Work No. 2) authorised by this Act.

9.—(1) The Corporation shall not collect impound take use or appropriate any water from the Clydach stream when the quantity of water then flowing in the said stream immediately below the weir and intake (Work No. 1) authorised by this Act shall be less than at the rate of four hundred thousand gallons per day of twenty-four hours or so as to reduce the quantity of water then flowing in that stream immediately below the weir and intake (Work No. 1) authorised by this Act to less than a rate of four hundred thousand gallons per day of twenty-four hours. Restriction on taking water from Clydach stream.

(2) The Corporation shall before taking any water from the Clydach stream construct on an approved site an approved gauge to gauge the quantity of water flowing in the said stream.

(3) In this section the expression "gauge" includes a gauge weir or other apparatus for measuring the flow of water and the expression "approved" means approved by the Minister of Housing and Local Government.

10.—(1) The Corporation during and for the purpose of the execution of the works authorised by this Act may temporarily stop up and divert and interfere with any street and may for any reasonable time divert the traffic therefrom and prevent all persons other than those bona fide going to or from any house building or land in the street from passing along and using the same. Temporary stoppage of streets.

(2) The Corporation shall provide reasonable access for foot-passengers and so far as practicable for vehicular traffic bona fide going to or from any such house building or land.

11.—(1) If in the opinion of the Corporation it shall be expedient in order to preserve the purity of the waters which they are by this Act authorised to take to prohibit the dipping or washing of sheep (with or without the use of chemicals) in any such waters the Corporation shall have power to prohibit such dipping or washing of sheep: Sheep dipping and washing.

Provided that before the Corporation carry this provision into effect in respect of any place where it has been the practice to dip or wash sheep they shall after consultation with the Usk River Board give to the owners of such dipping or washing place notice in writing of their intention so to do and shall also give

notice of such intention by advertisement in a newspaper circulating in the district in which such dipping or washing place is situate and shall also provide and maintain in the nearest convenient and available situation another suitable dipping or washing place and also a suitable folding place in the vicinity thereof.

(2) Any person aggrieved by any prohibition issued by the Corporation under this section may within three months after the issue thereof appeal to a court of summary jurisdiction held for the petty sessional division in which the prohibition is to take effect provided that he gives not less than fourteen days' notice of the appeal and of the grounds thereof to the Corporation.

(3) On any such appeal the court shall have power to cancel the prohibition or to allow the prohibition unconditionally or subject to such conditions as to the area within which it shall take effect or as to the provision and maintenance of another suitable dipping or washing place or otherwise as they may think fit and to award costs which costs shall be recoverable summarily as a civil debt.

(4) A notice given under this section shall state the right of appeal to a court of summary jurisdiction and the time within which such an appeal may be brought.

Amendment of
section 18 of
Act of 1920.

12.—(1) As from the completion of the weir (Work No. 3) authorised by this Act section 18 (Power to take waters) of the Act of 1920 shall be read and have effect as if the following paragraphs were substituted for paragraphs (A) (B) and (C) of subsection (2):—

“(A) They shall erect and maintain at the weir (Work No. 3) authorised by the Newport Corporation Act 1953 a proper and suitable measuring gauge with a proper recording instrument fitted thereto:

(B) They shall discharge from the reservoir into the Caerfanell stream such quantity of water as may be necessary to secure that there passes over or through the said gauge in a regular uniform and continuous flow a quantity of water not less than five million five hundred thousand gallons during every day of twenty-four hours:

Provided that if so required by the Usk River Board by not less than seven clear days' previous notice in writing the Corporation shall discharge as aforesaid such quantity of water as may be necessary to secure that there passes over or through the said gauge on every day during such period as may be stated in the notice such a quantity of water whether greater or less

than five million five hundred thousand gallons but not exceeding eight million gallons as may be stated in the notice but nothing herein contained shall authorise the Usk River Board to require the Corporation to discharge water in such quantities as to cause to pass over or through the said gauge—

(i) between the thirty-first day of March and the first day of November in any year a greater quantity of water than one thousand one hundred and seventy-seven million gallons ; or

(ii) in any period of twelve consecutive months a greater quantity of water than two thousand and seven million five hundred thousand gallons ; or

(iii) in any period of twenty-four hours during which the reservoir is full a less quantity of water than five million five hundred thousand gallons.”

(2) The said section 18 shall be read and have effect as if references to the Usk River Board were substituted for references to the Usk Conservators.

13.—(1) As from the completion of the weir (Work No. 3) Penalties. authorised by this Act—

(a) if the Corporation—

(i) fail to construct or maintain in good order the gauges or refuse to allow any person interested to inspect and examine the gauges or any records made thereby or kept by them in connection therewith or to take copies of any such records ; or

(ii) take any water from the Clydach stream contrary to the provisions of section 9 (Restriction on taking water from Clydach stream) of this Act or fail to comply with the requirements of paragraph (B) of subsection (2) of section 18 (Power to take waters) of the Act of 1920 ;

they shall without prejudice to their civil liability if any to a person aggrieved be liable in the case of an offence under sub-paragraph (a) (i) of this subsection to a fine not exceeding fifty pounds in respect of each day on which the offence has been committed or has continued and in the case of an offence under sub-paragraph (a) (ii) of this subsection—

(i) on summary conviction to a fine not exceeding fifty pounds in respect of each such day ;

(ii) on conviction on indictment to a fine not exceeding five hundred pounds in respect of each such day ;

(b) subsection (6) of the said section 18 shall be repealed.

(2) In this section the expression "the gauges" means the gauge referred to in paragraph (A) of subsection (2) of the said section 18 and in addition after the completion of the weir and intake (Work No. 1) and the aqueduct (Work No. 2) authorised by this Act the gauge referred to in subsection (2) of the said section 9 or either of them.

(3) For the purposes of this section a river board and a navigation authority shall be deemed to be interested in the flow of water in and the discharge of water into the Clydach and Caerfanell streams if the streams or either of them are within their area or district or as the case may be form part of their system of navigation or any stream feeding either of the said streams or any part of that system and shall be deemed to be aggrieved by the commission of an offence under this section in relation to any such stream.

(4) Subject to the provisions of section 114 of the Magistrates' Courts Act 1952 any fine recovered under this section on the complaint of a river board or of an officer of or person authorised by a river board shall as to the whole or such part thereof as the court may determine be paid to the board in respect of the costs of the prosecution.

(5) Subsection (9) of the said section 18 is hereby repealed.

As to existing
compensation
gauge.

14. The Corporation shall continue to maintain the existing compensation gauge at the point shown on the deposited plan until they shall have completed the weir (Work No. 3) authorised by this Act and erected a gauge thereat and thereupon they may remove the said existing gauge.

PART III

LANDS

Power to
acquire lands.

15.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands delineated on and included within the limit of land to be acquired marked on the deposited plan and described in the deposited book of reference (not being lands over which easements only may be acquired under the powers of subsection (2) of section 22 (Power to acquire easements only) of this Act) as may be required for the purpose of the works authorised by this Act.

(2) The powers of the Corporation for the compulsory purchase of land under this section shall cease after the expiration of three years from the first day of December nineteen hundred and fifty-three.

Correction
of errors in
deposited
plan and book
of reference.

16.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plan or in the

deposited book of reference the Corporation after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction in the county of Brecknock for the correction thereof.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

(3) Any such certificate shall be deposited with the clerk of the county council of the administrative county of Brecknock and a copy thereof shall be deposited with every clerk of a local authority and chairman of a parish council or parish meeting with whom a copy of the deposited plan (or of so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the Standing Orders of the Houses of Parliament or who has the custody of any such copy so deposited and thereupon the deposited plan and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the land or easements and rights therein and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

17.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

Acquisition of
part only of
certain
properties.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal determines—

(a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory ; or

(b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Corporation that part of the house building factory park or garden.

Power to
expedite entry.

18. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Corporation may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

Power to
enter for
survey or
valuation.

19. Any person acting on behalf of the Corporation and duly authorised by the town clerk of Newport may at all reasonable times enter on any land that may be acquired compulsorily or in respect of which any easement or right may be acquired compulsorily under this Act for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Corporation not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice to the owner and occupier of the land in manner provided by section 285 of the Public Health Act 1936.

Disregard
of recent
improvements
and interests.

20. In determining any question of disputed compensation or purchase money in respect of land or easements or rights in land acquired under this Act the tribunal shall not take into account—

(a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-two ; or

(b) any interest in the land created after the said date ;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

Extinction of
private rights
of way.

21.—(1) All private rights of way over any land that may be acquired compulsorily under this Act shall as from the acquisition of the land whether compulsorily or by agreement be extinguished.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute

under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

22.—(1) In lieu of acquiring any land that may be acquired under this Act the Corporation may for the purpose of constructing using and maintaining so much of the works authorised by this Act as will be laid underground and doing anything necessary in connection therewith acquire such easements and rights in that land as they may require for that purpose. Power to acquire easements only.

(2) The Corporation for the purpose of obtaining access at all times over and across the lands delineated on and included within the limit of easements to be acquired marked on the deposited plan to lands delineated on and included within the limit of land to be acquired marked on that plan may enter upon and acquire easements or rights (without being required to purchase the lands or any part thereof) of passing and re-passing over and across the first-mentioned lands with or without vehicles horses plant machinery officers servants and other persons authorised by the Corporation and of constructing and maintaining on or over those lands such roadway or approach and other means of access as they may require.

(3) Accordingly the Corporation may give notice to treat in respect of any such easement or right describing the nature thereof and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(4) Where the Corporation have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement or during the execution of the said works) entitled to fence off or sever that land from the adjoining land ;

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use and cultivate the land as if this Act had not been passed.

(5) If in his particulars of claim the owner of any such land as is referred to in subsection (1) of this section in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the land the Corporation shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house :

Provided that nothing in this subsection shall apply to land forming part of a street.

(6) A notice to treat given under this section in respect of any such land as is referred to in subsection (1) thereof shall be endorsed with notice of the effect of subsection (5) of this section.

PART IV

FINANCE AND MISCELLANEOUS

Power to
borrow.

23.—(1) The Corporation shall have power in addition and without prejudice to their powers of borrowing under the Local Government Act 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all moneys so borrowed within such periods as they may determine not exceeding those respectively mentioned in the third column of the said table:—

1	2	3
Purpose	Amount	Period for repayment
(a) The purchase of lands minerals and easements for the purposes of this Act.	The sum requisite	Sixty years from the date or dates of borrowing.
(b) The construction of the works authorised by this Act (except Work No. 2 filter house extension and filters).	£4,000	Fifty years from the date or dates of borrowing.
(c) The construction of Work No. 2.	£14,450	Thirty-five years from the date or dates of borrowing.
(d) Filter house extension	£13,000	Thirty years from the date or dates of borrowing.
(e) Filters	£31,300	Twenty years from the date or dates of borrowing.
(f) The payment of the costs charges and expenses of this Act.	The sum requisite	Five years from the passing of this Act.

(2) The provisions of Part IX of the Local Government Act 1933 so far as they are not inconsistent with this Part of this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the

period fixed by this section for the repayment of any money borrowed shall as respects that money be the fixed period for the purposes of the said Part IX.

24. It shall not be lawful to exercise the powers of borrowing conferred by this Act (other than the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

Saving for powers of Treasury.

25. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

26. Nothing in this Act affects prejudicially any estate right privilege or exemption of the Crown.

Crown rights.

27. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund and the general rate of the borough or out of money to be borrowed under this Act for that purpose.

Costs of Act.

Table of Statutes referred to in this Act

Short title	Session and chapter
Lands Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act 1845 ...	8 & 9 Vict. c. 20.
Newport (Monmouthshire) Corporation Water Act 1888	51 & 52 Vict. c. lxxxii.
Acquisition of Land (Assessment of Com- pensation) Act 1919	9 & 10 Geo. 5. c. 57.
Newport Corporation Act 1920	10 & 11 Geo. 5. c. lvii.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	25 Geo. 5. & 1 Edw. 8. c. 49.
Water Act 1945	8 & 9 Geo. 6. c. 42.
Borrowing (Control and Guarantees) Act 1946	9 & 10 Geo. 6. c. 58.
Town and Country Planning Act 1947 ...	10 & 11 Geo. 6. c. 51.
Lands Tribunal Act 1949	12 & 13 Geo. 6. c. 42.
Magistrates' Courts Act 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.

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